The Kansas-Nebraska Act

U.S. Congress (drafted by Sen. Stephen A. Douglas) · May 30, 1854

Source: An Act to Organize the Territories of Nebraska and Kansas, 33rd Congress (1854)

Written by Senator Stephen Douglas to organize the Nebraska and Kansas territories — and to clear a path for a transcontinental railroad — the act let settlers decide the slavery question by "popular sovereignty." Because it repealed the Missouri Compromise line of 1820, it reopened the fight over slavery in the territories, triggered "Bleeding Kansas," shattered the party system, and hastened the birth of the Republican Party and the coming of the Civil War.

Connect: Why did applying "popular sovereignty" to Kansas and Nebraska prove so much more explosive than its supporters expected?

Key Passages

Popular sovereignty

"… it being the true intent and meaning of this act not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States."

Repeal of the Missouri Compromise

"… the Missouri Compromise … being inconsistent with the principle of non-intervention by Congress with slavery in the States and Territories … is hereby declared inoperative and void."

Admission with or without slavery

"… the said Territory, or any portion of the same, shall be received into the Union, with or without slavery, as their constitution may prescribe at the time of their admission."

HAPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HAPP Element	Your Analysis
Historical Context *What was happening when this was written?*	Sectional tension after the Compromise of 1850, plus Douglas's push to organize the Nebraska Territory for a transcontinental railroad through the central route.
Intended Audience *Who was the source written for?*	Congress and the settlers of the new Kansas and Nebraska territories, along with Northern and Southern voters watching the slavery question.
Point of View *Whose perspective? Whose is missing?*	Senator Stephen A. Douglas, an Illinois Democrat who favored popular sovereignty and needed Southern votes; abolitionists and enslaved people had no voice in it.

HAPP Element	Your Analysis
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. SAQ practice (A·C·E): Explain ONE effect of the Kansas-Nebraska Act on sectional tensions.

2. How did “popular sovereignty” differ from the way the Missouri Compromise had handled slavery in the territories?

3. Why did this act accelerate the collapse of the Second Party System and the rise of the Republicans?